

LEGISLATURE OF NEBRASKA
ONE HUNDRED NINTH LEGISLATURE
SECOND SESSION

LEGISLATIVE BILL 1000

Introduced by Prokop, 27; Hallstrom, 1.

Read first time January 13, 2026

Committee:

- 1 A BILL FOR AN ACT relating to the Protection Orders Act; to amend section
- 2 26-118, Revised Statutes Supplement, 2025; to change penalties for
- 3 violations of domestic abuse and sexual assault protection orders;
- 4 and to repeal the original section.
- 5 Be it enacted by the people of the State of Nebraska,

1 **Section 1.** Section 26-118, Revised Statutes Supplement, 2025, is
2 amended to read:

3 26-118 (1) Any person, except the petitioner, who knowingly violates
4 a protection order issued pursuant to the Protection Orders Act, after
5 service or notice as described in subsection (4) of section 26-114, or a
6 valid foreign protection order recognized pursuant to section 26-123 or
7 26-124, shall be guilty of an offense and punished as provided in this
8 section.

9 (2) For a violation involving a domestic abuse protection order, a
10 sexual assault protection order, a valid foreign domestic abuse
11 protection order recognized pursuant to section 26-123, or a valid
12 foreign sexual assault protection order recognized pursuant to section
13 26-124, a violation of this section is a:

- 14 (a) Class I misdemeanor for a first offense; and a
15 (b) Class IV felony for a any second or subsequent offense; -
16 (c) Class IIIA felony for a third offense; and
17 (d) Class IIA felony for any fourth or subsequent offense.

18 (3) For a violation of a harassment protection order or a valid
19 foreign harassment protection order recognized pursuant to section
20 26-124, a violation of this section is a Class II misdemeanor for a first
21 offense and a Class I misdemeanor for any second or subsequent offense.

22 **Sec. 2.** Original section 26-118, Revised Statutes Supplement, 2025,
23 is repealed.